

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher Anderson	Team: Squad #02	CCRB Case #: 201706875	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 08/17/2017 4:41 PM	Location of Incident: § 87(2)(b); 41st Precinct stationhouse	18 Mo. SOL 2/17/2019	Precinct: 41
Date/Time CV Reported Fri, 08/18/2017 12:51 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 08/18/2017 12:51 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Steven Allen	00307	948606	041 PCT
2. SGT Avlon Beazer	01298	929696	041 PCT
3. SGT Edgar Padilla	02988	895127	041 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Trevor Singh	17598	962107	041 PCT
2. POM Jorge Malavet	01181	954088	041 PCT
3. POM Andre Fields	27134	953858	041 PCT
4. POM Richard Ruiz	18806	962071	041 PCT
5. SGT Christophe Vaccaro	02737	947671	041 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Steven Allen	Force: At § 87(2)(b) in the Bronx, Police Officer Steven Allen used physical force against § 87(2)(b)	A . Exonerated
B . SGT Avlon Beazer	Abuse: At the 41st Precinct stationhouse, Sergeant Avlon Beazer did not obtain medical treatment for § 87(2)(b)	B . Unsubstantiated
C . SGT Edgar Padilla	Abuse: At the 41st Precinct stationhouse, Sergeant Edgar Padilla did not obtain medical treatment for § 87(2)(b)	C . Unsubstantiated

Case Summary

On August 18, 2017, § 87(2)(b) called the CCRB and filed this complaint via the Call Processing System.

On August 17, 2017, at approximately 4:41 p.m., Police Officer Steven Allen, Police Officer Richard Ruiz, and Police Officer Trevor Singh, all from the 41st Precinct, responded to a 911 call regarding a domestic dispute in the vicinity of § 87(2)(b) in the Bronx. After arriving at the location, they spoke with § 87(2)(b) who informed them that the father of her children, § 87(2)(b) had violated an Order of Protection that she had filed against him. § 87(2)(b) entered the officers' vehicle and identified § 87(2)(b) to them on a nearby street. The officers handcuffed § 87(2)(b) and placed him inside their vehicle. After doing so, Police Officer Allen pulled § 87(2)(b) from the vehicle to the ground (**Allegation A**), causing chest pain. § 87(2)(b) was arrested and charged with § 87(2)(b) (Board Review 07).

§ 87(2)(b) was transported to the 41st Precinct stationhouse, where his arrest was processed and he was lodged inside a holding cell, where NYPD documents indicate § 87(2)(b) had also been lodged. While inside the holding cell, § 87(2)(b) allegedly requested that medical treatment be obtained by both Sergeant Avlon Beazer and Sergeant Edgar Padilla. Neither Sergeant Beazer nor Sergeant Padilla responded to these requests (**Allegations B and C**). No video footage was found in this case.

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation due to § 87(2)(b)'s arrest.
- On November 20, 2017, a Notice of Claim inquiry was sent to the NYC Comptroller's Office, and the response will be added to the case file upon receipt (Board Review 01).

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB case (Board Review 03).
- Police Officer Allen has been a member of the NYPD for seven years and has two prior allegations against him in two cases, neither of which was substantiated. § 87(2)(g)
- Sergeant Beazer has been a member of the NYPD for 15 years and has one prior allegation against him, which was not substantiated. § 87(2)(g)
- Sergeant Padilla has been a member of the NYPD for 28 years and has 29 prior allegations against him in 20 cases, one of which was substantiated. In CCRB case number 201704337, a Discourtesy – Word allegation was substantiated, with the Board recommending Command Discipline A and the NYPD disposition pending. § 87(2)(g)

Findings and Recommendations

Allegation A –Force: At § 87(2)(b) in the Bronx, Police Officer Steven Allen used physical force against § 87(2)(b)

On October 3, 2017, § 87(2)(b) who was incarcerated at the Brooklyn Detention Complex, was interviewed via Video TeleConference. On October 18, 2017, § 87(2)(b) provided a telephone statement (Board Review 04). On November 9, 2017, Police Officer Allen, Sergeant Beazer, and Sergeant Padilla were interviewed at the CCRB. On November 9, 2017, § 87(2)(b) provided a telephone statement (Board Review 05).

It is undisputed that § 87(2)(b) physically resisted when officers attempted to arrest him and when they attempted to initially place him into a police vehicle. After officers managed to place him into the police vehicle, § 87(2)(b) undisputedly kicked Police Officer Allen in the forearm. Police Officer Allen, at some point after this, pulled § 87(2)(b) out of the officers' vehicle, causing him to land on the ground with his upper body. At some point during this struggle, § 87(2)(b) reached towards one of the implements on Police Officer Allen's utility belt. § 87(2)(g)

§ 87(2)(b) stated that when Police Officer Allen attempted to handcuff him, he pulled his arms away from Police Officer Allen. § 87(2)(b) and Police Officer Allen "wrestled," and as § 87(2)(b) attempted to run from Police Officer Allen, he reached a hand towards Police Officer Allen's radio, which was attached to his waist. Police Officer Allen said, "Oh, he's reaching for my gun." The officers rear handcuffed § 87(2)(b) and Police Officer Allen lifted him off of the ground and threw him into the officers' vehicle, with him landing on his stomach on a seat inside. § 87(2)(b) kicked his leg backwards at Police Officer Allen one time, striking him in the forearm. Police Officer Allen grabbed § 87(2)(b) by his ankles and "dragged" him from the vehicle. § 87(2)(b) struck the ground outside the vehicle with his chest, causing chest pain. § 87(2)(b) "calmed down," and Police Officer Allen lifted him to his feet and placed him back inside the officers' vehicle. § 87(2)(b) began striking his own head against the interior of a door window in the officers' vehicle out of anger.

Police Officer Allen stated that § 87(2)(b) verbally refused to be arrested and, when he attempted to handcuff him, § 87(2)(b) tensed his arms in what Police Officer Allen thought was an attempt to avoid being handcuffed. Police Officer Allen and Police Officer Ruiz were able to handcuff § 87(2)(b) without performing additional actions beyond moving his arms. As Police Officer Allen and Police Officer Ruiz attempted to escort § 87(2)(b) to the officers' vehicle, § 87(2)(b) leaned his weight backwards. Outside the vehicle, Police Officer Allen and Police Officer Ruiz pushed § 87(2)(b) into the vehicle as he continued to lean his weight backwards in what Police Officer Allen thought was an attempt to prevent himself from moving forward. § 87(2)(b) landed in the vehicle's seats such that he partially faced the exterior of the vehicle with his legs outside of it. Upon Police Officer Allen's request, Police Officer Singh walked to the opposite side of the vehicle, grabbed hold of § 87(2)(b)'s upper body, and pulled his body into the vehicle.

As Police Officer Allen attempted to move § 87(2)(b)'s legs into the vehicle, § 87(2)(b) kicked him one or two times in the right forearm. Police Officer Allen, with the assistance of other officers, grabbed hold of § 87(2)(b) and removed him from the vehicle in a manner he could not recall with the intent of repositioning § 87(2)(b)'s body inside the vehicle. As Police

Officer Allen began placing § 87(2)(b)'s body into the vehicle again, he felt § 87(2)(b)'s hands touching the butt of his gun and "tugging" on his utility belt. As a reaction to § 87(2)(b) touching his gun and with no intended tactical purpose or other reason, Police Officer Allen grabbed hold of § 87(2)(b) by his waist and pulled him outside the vehicle. § 87(2)(b) struck the ground on his right shoulder. Police Officer Allen did not observe any injuries on § 87(2)(b) after this, and Police Officer Allen did not recall hearing § 87(2)(b) complain of any shoulder or chest pain.

§ 87(2)(b) stated that § 87(2)(b) refused to comply with officers' orders to place his hands behind his back, and when an officer attempted to turn § 87(2)(b)'s body, § 87(2)(b) punched and kicked Police Officer Allen. The officers brought § 87(2)(b) to the ground, where he spat at the officers. § 87(2)(b) was handcuffed and lifted into the air by his legs and torso. § 87(2)(b) was carried and placed, face down, in the officers' vehicle. § 87(2)(b) kicked Police Officer Allen and struck his own head against a door window in the vehicle. An officer instructed the other officers to remove § 87(2)(b) from the vehicle to reorient his body position inside of it. Police Officer Singh removed § 87(2)(b) from the vehicle by pulling his arms. § 87(2)(b) did not see Police Officer Allen remove § 87(2)(b) from the vehicle. § 87(2)(b) reached towards Police Officer Allen's firearm. Police Officer Allen said, "Are you trying to go for my gun? Are you crazy?" § 87(2)(b) said, "I don't care" and spat at Police Officer Allen. § 87(2)(b) was again placed inside the vehicle.

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] it is recommended

that **Allegation A** be **Exonerated**.

Allegation B –Abuse of Authority: At the 41st Precinct stationhouse, Sergeant Avlon Beazer did not obtain medical treatment for § 87(2)(b)

Allegation C –Abuse of Authority: At the 41st Precinct stationhouse, Sergeant Edgar Padilla did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) stated that after he was transported to the 41st Precinct stationhouse, he was lodged inside a holding cell. At approximately 5:00 p.m., he urinated inside the holding cell and stood on a bench inside it. Sergeant Beazer entered the holding cell and requested that § 87(2)(b) get down from the bench. § 87(2)(b) replied that he would do so if his shoes were returned to him. § 87(2)(b) complained of chest pain and requested that Sergeant Beazer obtain medical treatment for him. Sergeant Beazer did not respond. § 87(2)(b) later saw Sergeant Padilla and requested that he obtain medical treatment for § 87(2)(b). Sergeant Padilla did not respond to this request.

§ 87(2)(b) stated that he thought he had been transported to the 48th Precinct stationhouse after his arrest on the incident date, though NYPD documents indicate that he was lodged in a holding cell and transported from the 41st Precinct stationhouse at the same time as § 87(2)(b). § 87(2)(b) stated that he did not recall any notable incidents occurring inside the stationhouse on the incident date and, when presented with elements of the incident alleged by § 87(2)(b) that he did not recall such events taking place.

§ 87(2)(b) stated that although she went to the 41st Precinct stationhouse after § 87(2)(b)'s arrest, she did not interact with § 87(2)(b) while inside it.

Sergeant Beazer stated that he did not recall having had any interaction with § 87(2)(b) on the incident date. Sergeant Beazer recalled being informed that Police Officer Allen had been kicked in the arm by § 87(2)(b) but had not learned of any injuries § 87(2)(b) had sustained. Sergeant Beazer denied that he interacted with any prisoners on the incident date, did not recall § 87(2)(b) urinating inside his holding cell or standing on a bench, did not recall any prisoner requesting medical treatment on the incident date, and did not recall becoming aware of any officer from whom medical attention had been requested.

Sergeant Padilla stated that he was the Domestic Violence Supervisor on the incident date and worked inside his office in the 41st Precinct stationhouse, located approximately 75 feet away from the holding cells. Sergeant Padilla denied that he left the stationhouse, interacted with any prisoners, or was asked to obtain medical treatment for a prisoner during the entirety of his tour on the incident date. Sergeant Padilla denied that the circumstances surrounding this incident refreshed his recollection of any such incident and denied that he interacted with Sergeant Beazer about any prisoners inside the holding cells or with Police Officer Allen or Police Officer Singh regarding any arrests performed on the incident date.

While the 41st Precinct's Prisoner Holding Pen Roster (Board Review 10) and Command Log (Board Review 11) show that § 87(2)(b) entered the stationhouse at 4:45 p.m. and was transported to Bronx Central Booking at 6:50 p.m., neither document notes any other significant events involving § 87(2)(b) that occurred during this period.

§ 87(2)(g)
It is therefore recommended that **Allegations B** and **C** be **Unsubstantiated**.

Signature

Print

Date

Title/Signature

Print

Date

Title/Signature	Print	Date
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